

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Rebecca Ho	Team: Squad #03	CCRB Case #: 201503800	☒ Force ☒ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Thursday, 05/07/2015 6:10 PM	Location of Incident: § 87(2)(b), en-route to the 75th Precinct stationhouse, & at the 75th Precinct stationhouse.	18 Mo. SOL 11/7/2016	Precinct: 75
Date/Time CV Reported Fri, 05/08/2015 12:25 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 05/13/2015 12:14 PM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Kevin Ulrich	16881	955608	PBBN
2. POM Scott Carley	29078	954604	PBBN
3. SGT Keith Hockaday	986	940263	PBBN
4. POM Akil Guy	04945	954274	PBBN
5. Officer(s)			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Alexey Kushnerov	05046	956815	075 PCT
2. SGT William Hall	00530	904097	075 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Keith Hockaday	Discourtesy: At § 87(2)(b) in Brooklyn, Sgt. Keith Hockaday spoke discourteously to § 87(2)(b)	A . Unsubstantiated
B . POM Kevin Ulrich	Force: At § 87(2)(b) in Brooklyn, PO Kevin Ulrich used physical force against § 87(2)(b)	B . Exonerated
C . POM Kevin Ulrich	Force: At § 87(2)(b) in Brooklyn, PO Kevin Ulrich struck § 87(2)(b) with an asp.	C . Exonerated
D . SGT Keith Hockaday	Force: At § 87(2)(b) in Brooklyn, Sgt. Keith Hockaday used physical force against § 87(2)(b)	D . Exonerated
E . POM Scott Carley	Force: At § 87(2)(b) in Brooklyn, PO Scott Carley used physical force against § 87(2)(b)	E . Exonerated
F . Officer(s)	Force: At § 87(2)(b) in Brooklyn, officers used physical force against § 87(2)(b)	F . Exonerated
G . Officer(s)	Force: At § 87(2)(b) in Brooklyn, officers struck § 87(2)(b) with an asp.	G . Unfounded
H . POM Akil Guy	Force: En-route to the 75th Precinct stationhouse, PO Akil Guy used physical force against § 87(2)(b)	H . Unfounded
I . Officer(s)	Force: En-route to the 75th Precinct stationhouse, officers used physical force against § 87(2)(b)	I . Unfounded
J . POM Akil Guy	Force: At the 75th Precinct stationhouse, PO Akil Guy used physical force against § 87(2)(b)	J . Exonerated
K . Officer(s)	Force: At the 75th Precinct stationhouse, an officer used physical force against § 87(2)(b)	K . Exonerated

Case Summary

On May 8, 2015, Sgt. Keith Hockaday of PBBN filed this complaint with IAB on behalf of § 87(2)(b) generating log 2015-12486 [NYPD 06]. It was referred to the CCRB on May 13, 2015.

On May 7, 2015, at 6:10 p.m., § 87(2)(b) walked into the courtyard of § 87(2)(b) in Brooklyn. There, he encountered three uniformed police officers, identified by the investigation as Sgt. Keith Hockaday, PO Scott Carley, and PO Kevin Ulrich of PBBN, speaking with an individual. § 87(2)(b) told the officers that they were just a bunch of people "back there doing nothing," and for the officers to "man up." Sgt. Hockaday told § 87(2)(b) to "shut the fuck up," and ordered him to leave the back area (**Allegation A**). Next, § 87(2)(b) alleged Sgt. Hockaday, PO Carley, PO Ulrich, and an additional forty to fifty officers rushed towards him and tackled him to the ground; the officers punched him, kicked him and used an asp against him to handcuff him (**Allegation B, C, D, E, F, and G**). Next, § 87(2)(b) was brought into a van with fourteen to fifteen officers, one of whom § 87(2)(b) identified as PO Akil Guy of PBBN. The officers punched § 87(2)(b) in the chest repeatedly during the fifteen to twenty-five minute ride to the 75th Precinct stationhouse (**Allegations H and I**).

Upon the van's arrival at the stationhouse, § 87(2)(b) was dragged along the ground, with his handcuffed arms below him, along the ground into the stationhouse by PO Guy and an officer. § 87(2)(b) alleged PO Guy and the other officer picked him up by his shoulder and handcuffs, with his feet lifted from the ground, and threw him into the holding cell (**Allegations J and K**). § 87(2)(b) landed on the bench which caused trauma to the left side of his ribs.

§ 87(2)(b) § 87(2)(b) was admitted to § 87(2)(b). § 87(2)(a) PHL § 18(6)
Internal Affairs officers interviewed § 87(2)(b) on May 8, 2015 and photographed his injuries [NYPD 02].

Video footage for this incident could not be obtained. § 87(2)(g)

Mediation, Civil and Criminal Conviction Histories

- As § 87(2)(b) was arrested and sustained injuries, this case was unsuitable for mediation.
- § 87(2)(b) filed a Notice of Claim with the City of New York on § 87(2)(b), claiming he was detained, questioned, unlawfully seized, searched, threatened, assaulted, battered, injured by the negligent use of improper holds or maneuvers, falsely arrested, falsely imprisoned and maliciously prosecuted, and is seeking \$5,000,000 as redress [BR 15]. A 50-H hearing scheduled for § 87(2)(a) Gen.Mun. §50-H(3)

- On September 1, 2015, a FOIL request was submitted to the undersigned by § 87(2)(b) and denied by the CCRB.

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by § 87(2)(b) [BR 16].
- § 87(2)(b) has never filed a complaint with the CCRB [BR 16].
- Sgt. Keith Hockaday has been a member of the service for 9 years and there are no substantiated CCRB allegations against him.
- PO Scott Carley has been a member of the service for 2 years and there are no substantiated CCRB allegations against him
- PO Kevin Ulrich has been a member of the service for 2 years and this is the first CCRB complaint against him.
- PO Akil Guy has been a member of the service for 2 years and there are no substantiated CCRB allegations against him.

Finding and Recommendations

Explanation of Subject Officer Identification

- **Allegations F and G:** At § 87(2)(b) in Brooklyn, § 87(2)(b) alleged he was swarmed and tackled by the three officers who initially stopped him and other officers [BR 01]. In filing this complaint on behalf of § 87(2)(b) Sgt. Keith Hockaday identified himself, PO Keith Ulrich, and PO Scott Carley as the three officers who initially stopped § 87(2)(b) [NYPD 06]. § 87(2)(b) could not estimate how many additional officers there were or describe any of them [BR 01]. § 87(2)(b) estimated there were forty to fifty officers on him but could not describe the officers who used physical force against him or struck him with their asps. Sgt. Hockaday, PO Carley, PO Ulrich, and PO Guy could not recall who the additional officers who arrived to assist were [BR 08; BR 05; BR 06; BR 07].

EVENTS indicate police assistance (10-13) was requested to the incident location over a city-wide band and highway-band [NYPD 11]. However, the EVENT Unit Information does not note the posts/commands of any officers who responded to the incident.

In the 75th Precinct alone, there are eighteen supervisors, thirty-seven impact officers (twenty-three of whom are assigned to Impact West), and fifty-two additional officers on duty for Tour 3 of May 7, 2015 [NYPD 13]. Memo books of supervising officers Lt. Zelikov, Lt. Doyle, Lt. Skretch, Sgt. Haddican, Sgt. Clark, Sgt. Marchello, and Sgt. Guillermo Suarez (who signed off on PO Ulrich's Line of Duty report) as well as patrol sector E (incident occurred within the confines of sector E) in 75th Precinct were requested. PO Evans (Lt. Operator) and PO Kaminsky's memo books were requested as well. Memo books for the aforementioned officers did not indicate any of them as having responded to the incident [NYPD 08]; a request for PO Kaminsky's memo book remains pending. An IAB request for body worn camera footage was due on September 5, 2015 and remains pending.

The memo books of Sgt. Donice Moreau (she approved § 87(2)(b)'s UF-61) of PSA2 and Tour 3 roll call were requested from PSA2. However, Sgt. Moreau is assigned to crime analysis and does not work in the field.

§ 87(2)(g)

- **Allegation I:** § 87(2)(b) also alleged while sitting in the back row of a van en-route to the 75th Precinct stationhouse, PO Akil Guy (whom § 87(2)(b) identified by his nameplate), a second officer (whom he described as a Hispanic male, is 5'10" tall, athletic build, has black hair, and is 32-33 years old), and twelve to thirteen other officers (whom he

could not describe) took turns punching him in the chest. In his statement to IAB, § 87(2)(b) § 87(2)(b) alleged the second officer was PO Carley (whom he identified in a photo array) and noted there were only four to five additional officers in the van with them. But in his telephone statement, § 87(2)(b) § 87(2)(b) described the second officer differently (as a Caucasian/Hispanic male with “light-skin,” is 5’10”-11” tall, weighs 215-220 pounds, 35-38 years old, and in uniform) and noted there were 30-40 officers in the van with them.

The RMP, identified as marked van #8779¹¹, has no vehicle utilization log. The daily vehicle assignment sheet notes the van is assigned to the school unit [NYPD 13]. Roll call for Tour 3 of the 75th Precinct does not note the vehicle being assigned to any officers, and as it was Tour 3, there were no officers assigned to the school unit [ibid]. PO Guy and PO Ulrich confirmed they were passengers in the van, but could not identify any other officers in the van with them [BR 07; BR 06]. PO Carley denied being in the van [BR 05].

§ 87(2)(g)

Allegation K: At the 75th Precinct stationhouse, § 87(2)(b) further alleged he was dragged from the parking lot into the stationhouse and thrown into a solitary holding cell by PO Guy and a second officer (as noted in Allegation I) [BR 12]. § 87(2)(b) explained that no other prisoners would have been able to see him being thrown in by officers. The desk supervisor Sgt. William Hall and cell attendant PO Alexey Kushnerov of the 75th Precinct did not recall anything about the incident [BR 09; BR 10].

A holding pen roster could not be located by the 75th Precinct. § 87(2)(g)

Recommendations

- **Allegation A: Discourtesy – At § 87(2)(b) in Brooklyn, Sgt. Keith Hockaday spoke discourteously to § 87(2)(b)**

§ 87(2)(b) testified that when he spoke to the three officers (identified by the investigation as Sgt. Hockaday, PO Ulrich, and PO Carley) while they argued with an unidentified male, Sgt. Hockaday told § 87(2)(b) “Get the fuck out of here” [BR 1]. § 87(2)(b) did not allege an officer spoke rudely to him in his IAB interview [NYPD 05]. § 87(2)(b) PO Ulrich, and PO Carley did not indicate that Sgt. Hockaday spoke profanely to § 87(2)(b) [BR 02, BR 05, and BR 06]. Sgt. Hockaday denied that the alleged statements were ever made [BR 08]. § 87(2)(g)

Consequently, it is recommended that **Allegation A** be closed as **unsubstantiated**.

- **Allegation B: Force – At § 87(2)(b) in Brooklyn, PO Kevin Ulrich used physical force against § 87(2)(b)**
- **Allegation C: Force - At § 87(2)(b) in Brooklyn, PO Kevin Ulrich struck § 87(2)(b) with an asp.**
- **Allegation D: Force – At § 87(2)(b) in Brooklyn, Sgt. Keith Hockaday used physical force against § 87(2)(b)**
- **Allegation E: Force – At § 87(2)(b) in Brooklyn, PO Scott Carley used physical force against § 87(2)(b)**

• **Allegation F: Force – At § 87(2)(b) in Brooklyn, officers used physical force against § 87(2)(b)**

§ 87(2)(b) was interviewed by IAB investigators Det. Gregory Parker and Sgt. Luke Gazquez on May 8, 2015, between 9:10 a.m. and 9:30 a.m. at the 75th Precinct stationhouse [NYPD 01]. § 87(2)(b) provided a telephone statement to the investigation on May 19, 2015 [BR 20] and was formally interviewed on June 16, 2015 [BR 01]. § 87(2)(g) § 87(2)(b). In his CCRB interview, § 87(2)(b) testified that when he walked into the courtyard of § 87(2)(b) to retrieve his hard-hat, he encountered three uniformed police officer (identified by the investigation as Sgt. Keith Hockaday, PO Scott Carley, and PO Kevin Ulrich of PBBN) speaking with an individual he did not know. Conversely, in § 87(2)(b)'s interview with IAB, he noted he knew the unidentified male from around the neighborhood. § 87(2)(b) told the officers that they were just a bunch of people "back there doing nothing" [BR 01] and for the officers to stop talking to the male and "man up" [NYPD 05]. In response, Sgt. Hockaday ordered § 87(2)(b) to leave the back area. In his IAB interview, § 87(2)(b) alleged Sgt. Hockaday was the one who started punching and kicking him. He then alleged thirty additional officers arrived and all were beating him up before he was handcuffed. In his telephone statement, § 87(2)(b) alleged he was handcuffed, punched in the torso, and then kicked at as he fell to the ground. In his formal statement, § 87(2)(b) alleged Sgt. Hockaday, PO Carley, PO Ulrich, and an additional forty to fifty officers rushed towards him and tackled him to the ground; he landed on all fours, with his arms cradling his head. The officers kicked his arms and torso and punched him all over his body. § 87(2)(b) estimated he had been struck more than twenty or thirty times before being handcuffed.

§ 87(2)(b) explained that roughly three minutes into the officers' interaction with the unidentified male, § 87(2)(b) entered the courtyard and approached them [BR 02]. § 87(2)(b) § 87(2)(b) asked the officers what was going on and was told by one of the officers (identified by the investigation as Sgt. Hockaday), that it was of no concern to him. § 87(2)(b) replied that it did concern him, and § 87(2)(b) explained that she believed the unidentified male was possibly § 87(2)(b)'s best friend or relative. Sgt. Hockaday and one of his partners (identified by the investigation as PO Carley) approached § 87(2)(b) and asked him to provide identification. Suddenly, they asked § 87(2)(b) to put his hands behind his back and when he did not, they grabbed him and put him chest down on the table to try and force his hands behind his back. § 87(2)(b) observed § 87(2)(b) resist arrest by preventing his arms from going behind his back. § 87(2)(b) did not see how § 87(2)(b) was brought down to the ground. Next, § 87(2)(b) observed twenty to thirty officers rush into the courtyard to assist. There were four to five officers on top of § 87(2)(b) with either Sgt. Hockaday or PO Carley with his knee in § 87(2)(b)'s back, a uniformed officer whom she could not describe punch § 87(2)(b) in the ribs, and a plainclothes officer she could not describe place his knee on § 87(2)(b)'s face.

PO Ulrich stated that he and his partners had just asked the unidentified male they observed littering for his identification when § 87(2)(b) entered the courtyard and walked towards them yelling out, "You have no right stopping him!" and used the words "mother fucker" and "fuck" numerous times [BR 06]. § 87(2)(b)'s outbursts caused the crowd of ten to fifteen people in the courtyard to gather around them. § 87(2)(b)'s aggressive behavior, and upon his approach to PO Ulrich, the odor on his breath and slurred speech led PO Ulrich to believe § 87(2)(b) was intoxicated. For roughly two minutes, they attempted to establish a rapport with § 87(2)(b) hoping he would adhere to their instructions to disperse. Sgt. Hockaday issued roughly three commands to § 87(2)(b) to leave. Although PO Ulrich was speaking with the individual from the initial stop, he and PO Carley also issued commands to § 87(2)(b) to

leave. § 87(2)(b) was informed if he did not leave, he would be arrested for obstructing governmental administration and disorderly conduct for interrupting their initial stop. After Sgt. Hockaday issued his third order, they went to handcuff § 87(2)(b). PO Ulrich was still speaking with the unidentified male when he observed § 87(2)(b) push Sgt. Hockaday sideways with either one or both hands. Sgt. Hockaday did not fall to the ground; he radioed for assistance to their location. PO Carley approached § 87(2)(b) from the side and grabbed at § 87(2)(b)'s arm. § 87(2)(b) slapped PO Carley's arm away. PO Ulrich went to grab § 87(2)(b)'s arm but lost his balance and fell into § 87(2)(b). PO Ulrich and § 87(2)(b) went backwards into the concrete bench of a picnic table directly behind them and PO Ulrich landed with his left arm wedged between § 87(2)(b) and the ground and his face in § 87(2)(b)'s chest. § 87(2)(b) wrapped one arm around PO Ulrich's neck and gripped his wrist with his other arm for leverage to pull his arm tighter and block PO Ulrich's airways. PO Ulrich was too stressed to hear what PO Carley and Sgt. Hockaday were saying and could not see what they were doing with his face in § 87(2)(b)'s chest. PO Ulrich could not estimate how long he was trapped by § 87(2)(b) but noted he was about to pass out. With his left arm still trapped, PO Ulrich removed his asp and extended it. PO Ulrich hit § 87(2)(b) an unknown amount of times in what he presumed was § 87(2)(b)'s shoulder, not knowing if he hit his mark. § 87(2)(b) did loosen his arms and PO Ulrich separated himself from § 87(2)(b). Twenty to thirty plainclothes and uniformed officers had arrived and assisted PO Ulrich in quickly subduing § 87(2)(b) and placing him in handcuffs. PO Ulrich did not punch or kick § 87(2)(b) and did not observe another officer do so.

§ 87(2)(g)
PO Carley silently approached § 87(2)(b) from behind in an attempt to sneakily place handcuffs on him. § 87(2)(b) turned around, grabbed PO Carley's handcuffs, and threw them away. As PO Ulrich was the closest to § 87(2)(b) he engaged in a struggle with him; they were moving a lot with their hands and fell to the ground. PO Ulrich and § 87(2)(b) rolled numerous times on the ground as PO Carley and Sgt. Hockaday tried to free PO Ulrich. PO Carley grabbed § 87(2)(b)'s right arm and was able to lift § 87(2)(b)'s right arm slightly, but enough for PO Ulrich to free himself. PO Carley and other officers immediately took to handcuffing § 87(2)(b) as PO Ulrich caught his breath. PO Carley held § 87(2)(b)'s legs down as others handcuffed him. PO Carley denied having punched or kicked § 87(2)(b) and did not observe any other officer punch or kick § 87(2)(b).

§ 87(2)(g)
Sgt. Hockaday explained that PO Carley and PO Ulrich were speaking with the unidentified male while he conversed with § 87(2)(b). When Sgt. Hockaday went to grab § 87(2)(b)'s arm to arrest him, § 87(2)(b) flailed his arms up. PO Ulrich and PO Carley stepped in, and each grabbed § 87(2)(b) by the arm. § 87(2)(b) jerked his arms back and forth at chest level and twisted his torso left and right. PO Ulrich and PO Carley intentionally maneuvered § 87(2)(b) to the ground for leverage to handcuff him. The three men landed on the ground on their sides, with § 87(2)(b) between PO Ulrich and PO Carley. After struggling with § 87(2)(b) for roughly one minute, additional officers from numerous commands began to arrive at their location. Most officers were directed to control the crowd while another two officers (whom Sgt. Hockaday did not recall the identities of) assisted PO Ulrich and PO Carley with the task of securing § 87(2)(b) in handcuffs. It took an additional four minutes for them to finally handcuff § 87(2)(b). Sgt. Hockaday did not kick, punch, or knee § 87(2)(b) and did not observe another officer do so.

Sgt. Hockaday called IAB to report that as he, PO Carley, and PO Ulrich were placing an unidentified male under arrest, § 87(2)(b) attempted to intervene [NYPD 03]. § 87(2)(b)

§ 87(2)(b) was advised to step away but he refused, and then resisted when he was being placed under arrest and he was taken to the ground. Sgt. Hockaday stated § 87(2)(b) sustained a laceration to his right middle and ring finger during the incident. § 87(2)(b) was transported to § 87(2)(b) § 87(2)(a) PHL § 18(6)

§ 87(2)(b) IAB closed the call out because although § 87(2)(b) stated he was struck multiple times by multiple officers in the body, there was no visible bruising to his body [NYPD 06].

PO Guy explained that when he arrived in the courtyard, there were roughly twenty plainclothes and uniformed officers attempting to handcuff § 87(2)(b) [BR 07]. PO Guy stepped in to assist by grabbing one of § 87(2)(b)'s arms, as § 87(2)(b) was lying on his side on the ground, and held § 87(2)(b)'s arm until he was handcuffed. PO Guy saw 'a lot of hands,' but did not observe any physical force being used against § 87(2)(b) other than to hold him down. PO Guy did not punch, kick, or knee § 87(2)(b) and did not observe another officer do so.

EVENTS indicate police assistance (10-13) was requested to the incident location over a city-wide band and highway-band [NYPD 11]. At 6:14 p.m., 75 West Sergeant no. 1 called no further units to the location. At 6:15 p.m., 75 West Sergeant no. 2 called no further units to the location. At 6:15 p.m., Task Force no. 7 called no further units over the division. At 6:16 p.m., 75 West Sergeant no. 1 authorized the arrest of one individual and at 6:17 p.m., it was confirmed by the 75 Lieutenant no. 1. At 6:18 p.m., the 75 Lieutenant no. 1 noted all MOS accounted for and everyone resuming patrol. At 6:28 p.m., an ambulance was requested for an injured MOS for a laceration to the elbow.

§ 87(2)(a) 160.50

§ 87(2)(b) was initially entered into page 477 of the 75th Precinct command log as John Doe, in apparent normal physical and mental condition, without force used during the arrest [NYPD 12]. § 87(2)(b)'s name was later entered, he was noted as injured, and that force was used during his arrest.

§ 87(2)(a) 160.50

Photographs taken by IAB officers after § 87(2)(b) returned from § 87(2)(b) showed his right two fingers bandaged, as well as his right wrist and forearm [NYPD 02]. There is no ostensible bruising to § 87(2)(b)'s chest. § 87(2)(b) had a fourth bandage near his left elbow. § 87(2)(b) is shown with a face mask, which he informed IAB officers was because an individual next to him in the hospital smelled, and not because he was spitting at people [NYPD 05].

PO Ulrich's line of duty report notes he sustained § 87(2)(b) [NYPD 10]. § 87(2)(b) which he sustained when he fell to the ground while effecting an arrest from § 87(2)(b) who

was violently resisting. § 87(2)(b) attempted to overcome arrest while they were on the ground by flailing his arms. PO Guy and PO Carley filled out witness statements confirming PO Ulrich's testimony [ibid].

NYPD Patrol Guide §203-11 discusses the justification for the use of physical force by officers [BR 17]. It explains that an officer is able to use physical force to overcome resistance in the course of effecting an arrest, preventing an escape, and in self-defense from what "he or she reasonably believes to be the use or imminent use of physical force."

§ 87(2)(g)

[REDACTED]

§ 87(2)(g)

[REDACTED]

[REDACTED] Therefore, it is recommended **Allegations B, C, D, E, and F** be closed as **exonerated**.

- **Allegation G: Force – At § 87(2)(b) in Brooklyn, officers struck § 87(2)(b) with an asp.**

§ 87(2)(b) alleged that while he was on the ground being handcuffed, officers struck him with their asps [BR 01]. § 87(2)(b) could not establish how many officers struck him with their asps or how many times he was struck. As established above, PO Ulrich was the only officer to admit to using his asp [BR 06].

§ 87(2)(b) did not see any officers with their asps out, extended, or used against § 87(2)(b) [BR 02].

Other than himself, PO Ulrich did not observe another officer with their asp out or use their asp against § 87(2)(b) [ibid]. PO Carley, Sgt. Hockaday, and PO Guy noted that while they did have asps with them at the time of the incident, they did not strike § 87(2)(b) with their asp and did not observe any other officer do so [BR 05; BR 08; BR 07].

§ 87(2)(g) it is recommended that **Allegation G** be closed as **unfounded**.

- **Allegation H: Force – En-route to the 75th Precinct stationhouse, PO Akil Guy used physical force against § 87(2)(b)**
- **Allegation I: Force – En-route to the 75th Precinct stationhouse, officers used physical force against § 87(2)(b)**

§ 87(2)(b) alleged that while he sat in the last (third) row of the van en-route to the 75th Precinct stationhouse, PO Guy and twelve to thirteen officers repeatedly punched him in the chest [BR 01]. § 87(2)(b) claimed he was punched thirty times in the fifteen to twenty-five minute car ride. § 87(2)(b)

As previously established, PO Guy and PO Ulrich confirmed they were passengers in the van, but could not identify any other officers in the van with them [BR 07; BR 06]. Furthermore, PO Carley denied being in the van [BR 05]. PO Guy and PO Ulrich denied punching § 87(2)(b) in the chest and did not observe another officer do so. PO Guy stated while he sat in the second row of the van, he observed § 87(2)(b) throw himself sideways against the window of the van. PO Guy held § 87(2)(b) by the shoulder so he would not do so again. Another officer may have assisted PO Guy but he could not recall who. PO Ulrich could not recall which unit's van he was in or who was in it with him. PO Ulrich explained that while inside the van, he sat in the first row and was deeply focused on applying a rag to the abrasion on his left hand which was heavily bleeding.

Photographs of § 87(2)(b) taken by IAB officers approximately fifteen hours after the incident show no ostensible contusions [NYPD 02]. As noted in the IAB log, there was no visible bruising to his body [NYPD 06] § 87(2)(a) PHL § 18(6)

§ 87(2)(g) Consequently, it is recommended that **Allegations H and I** be closed as **unfounded**.

- **Allegation J: At the 75th Precinct stationhouse, PO Akil Guy used physical force against § 87(2)(b)**
- **Allegation K: At the 75th Precinct stationhouse, an officer used physical force against § 87(2)(b)**

§ 87(2)(b) alleged he had to turn sideways to exit the van because his shoulders are too broad [BR 01]. As § 87(2)(b) was about to exit the van on his own, PO Guy grabbed § 87(2)(b)'s feet as an unidentified officer grabbed § 87(2)(b) by the shoulders. They dragged § 87(2)(b) through the parking lot, 'twisting' him as they dragged him; § 87(2)(b) turned himself to the right as his arms were handcuffed below him. § 87(2)(b) alleged he sustained lacerations to his forearms – that his skin peeled off from being dragged along the ground – and two right fingers. § 87(2)(b) further alleged at the entrance to the stationhouse, he was stood up and pushed by his back into the stationhouse and escorted directly to the holding cell area. PO Guy and the unidentified officer each grabbed § 87(2)(b) by his

shoulder and back to lift him completely off the ground and throw him into the cell, where he landed on the bench in the cell, causing trauma to the left side of his ribs. § 87(2)(b) was placed in a solitary cell.

PO Guy stated when he asked § 87(2)(b) to step out of the van, § 87(2)(b) refused [BR 07]. Then, PO Guy was pushed aside by other officers whom he could not recall the identities of, and other officers escorted § 87(2)(b) out of the van. PO Guy did not pay attention to how § 87(2)(b) was escorted out of the van and into the stationhouse. PO Guy denied having dragged § 87(2)(b) on the ground into the stationhouse and did not observe him being dragged by other officers. PO Guy denied having any further encounters with § 87(2)(b).

PO Ulrich confirmed § 87(2)(b) refused to exit the van after being asked more than once to step out [BR 06]. PO Ulrich recalled he and PO Guy went to assist § 87(2)(b) out of the van, as § 87(2)(b) sat in the back row kicking and flailing his arms at the officers and spitting at them. When § 87(2)(b) kicked at PO Ulrich, he nearly slipped but lost his grip on § 87(2)(b). PO Ulrich could not recall how § 87(2)(b) ultimately exited the van. From there, § 87(2)(b) refused to walk into the stationhouse on his own accord. § 87(2)(b) had gone limp so PO Ulrich supported § 87(2)(b) from under one arm while PO Guy supported the other. PO Ulrich denied having pushed § 87(2)(b) through the stationhouse doors and brought § 87(2)(b) straight to the holding cell area. There, PO Ulrich passed § 87(2)(b) on to the cell attendant (identified by the investigation as PO Kushnerov) to place § 87(2)(b) inside a cell. PO Ulrich immediately left the cell area to wait in the lobby for an ambulance for himself, and did not observe any officer pick § 87(2)(b) up and throw him into a cell.

PO Carley was present at the stationhouse when § 87(2)(b) was brought in but did not observe § 87(2)(b) being escorted into the stationhouse and did not see him until he heard a commotion from the holding cell area [BR 05]. § 87(2)(b) was yelling, spitting, and refusing to walk down the row of cells. PO Carley denied making physical contact with § 87(2)(b).

Sgt. Hockaday was entering § 87(2)(b)'s pedigree information when he was escorted into the stationhouse by PO Guy and (conceivably) two other officers (whom he could not recall the identities of) [BR 08]. Sgt. Hockaday did not observe any officer drag § 87(2)(b) in and did not observe him being pushed into it. § 87(2)(b) refused to walk on his own to the holding cell area. Sgt. Hockaday accompanied them to the holding cell area, but denied having picked up § 87(2)(b) to throw him into the holding cell, and did not observe another officer do so.

The desk supervisor Sgt. Hall and cell attendant PO Kushnerov did not recall anything about the incident [BR 09; BR 10].

§ 87(2)(b)'s IAB interview notes he alleged he was dragged through the parking lot by his handcuffs from behind as he was in a seated position on the cement parking lot ground [NYPD 01].

Photographs taken by IAB officers after § 87(2)(b) returned from § 87(2)(b) showed his right two fingers bandaged (image 2; image 7), as well as his right wrist and the top of his forearm (image 2; image 5) [NYPD 02]. There is no ostensible bruising to § 87(2)(b)'s chest (image 4). § 87(2)(b) had a fourth bandage on the side of his left forearm near his elbow (image 3; image 6). § 87(2)(b) is shown with a face mask, which he informed IAB officers was because an individual next to him in the hospital smelled, and not because he was spitting at people [NYPD 05]. § 87(2)(g)

§ 87(2)(g)

Investigator: _____ Rebecca Ho 12/21/2015
Signature Print Date

Supervisor: _____

Title/Signature	Print	Date

Reviewer: _____

Title/Signature	Print	Date
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Reviewer: _____

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